

Present:

Mr. Justice Md. Kamrul Hossain Mollah

And

Mr. Justice Mohi Uddin Shamim

Death Reference No.144 of 2017

With

Criminal Appeal No.11806 of 2017

With

Criminal Appeal No.11807 of 2017

With

Criminal Appeal No.11865 of 2017

With

Criminal Appeal No.11866 of 2017

With

Criminal Appeal No.11972 of 2017

With

Criminal Appeal No.9038 of 2020

And

Jail Appeal No.442 of 2014

with

Jail Appeal No.443 of 2017

with

Jail Appeal No.444 of 2017

with

Jail Appeal No.445 of 2017

with

Jail Appeal No.446 of 2017

with

Jail Appeal No.470 of 2017

with

Jail Appeal No.265 of 2019

The State

... Petitioner

-Versus-

1. Selim (absconding)
2. Johirul Islam @ Jakir Hossain @ Jontu
3. Jewel (absconding)
4. Bakka Sumon @ Sumon
5. Asadul Islam (absconding)
6. Towhidul Islam @ Pritom @ Pritu @ Itu

7. Arif

8. Md. Hanif

9. Ripon Ahmed Juwel

... condemned-accused

Mr. Bashir Ahmed, D.A.G with

Mr. Nirmal Kumar Das, A.A.G. and

Mrs. Syeda Shobnum Mustary, A.A.G and

Mr. Md. Tariqul Islam Hira, A.A.G

... for the state.

Mrs. Hasna Begum, Advocate

... for the State Defence Lawyer

Mr. Md. Aminul Haque Helal, Adv

... For the accused appellant in

Criminal Appeal No. 11806 of 2017.

Mr. Md. Rafiul Islam, Advocate

... For the accused appellant in

Criminal Appeal No.11807 of 2017.

Mr. Saifuddin Mahmud, Advocate

... For the accused appellant in

Criminal Appeal No. 11865 of 2017.

Mr. Md. Shah Alam, Advocate

... For the accused appellant in

Criminal Appeal No. 11866 of 2017.

Mr. Abdullah Al Baki, Advocate

... For the accused appellant in

Criminal Appeal No. 11972 of 2017.

Mr. Md. Shaif Uddin (Raton), Advocate

... for the accused-appellant in

Criminal Appeal No. 9038 of 2020.

Heard on: 03.09.2023,
04.09.2023, 05.09.2023 &

Judgment on:10.09.2023.

Md. Kamrul Hossain Mollah,J:

This Death Reference under Section 374 of the Code of Criminal Procedure 1898 (hereinafter referred to as the Code) has been made by the learned Additional Sessions Judge, 1st Court, Gazipur for confirmation of the death sentence imposed upon the condemned-accused-prisoners namely, 1. Selim (absconding), 2.Johirul Islam @ Jakir Hossain @ Jontu, 3.Jewel (absconding), 4.Bakka Sumon @ Sumon, 5. Asadul Islam (absconding), 6. Towhidul Islam @ Pritom @ Pritu @ Itu, 7. Arif, 8. Md. Hanif, 9. Ripon Ahmed Jewel under sections 143/ 302/506/ 34 of the Penal Code in Sessions Case No.509 of 2011 arising out of Joydebpur Police Station Case No.28 dated 10.01.2010 corresponding to G.R. Case No. 28 of 2010 vide judgment and order of conviction and sentence dated 25.10.2017.

As against the aforesaid judgment and order of conviction and sentence dated 25.10.2017, the condemned-accused-prisoners preferred Criminal Appeal Nos.11806 of 2017, 11865 of 2017, 11866 of 2017, 11972 of 2017 and Jail Appeal Nos. 442 of 2017, 443 of 2017, 444 of 2017, 445 of 2017, 446 of 2017, 470 of 2017 and 265 of 2019.

The Death Reference, the Criminal Appeals and the Jail Appeal have emerged out of the self-same judgment and order of conviction and sentence and that common question of law and facts involved in those are same and hence, those have been heard together and are being disposed of by this single consolidated judgment.

Prosecution case, in brief, is that on 10.01.2010, one Md. Abul Hasem Sufi being the informant lodged an F.I.R with Joydebpur Police Station stating an occurrence on 08.01.2010 alleging inter-alia that the

informant Md. Abul Hasem Sufi is father of deceased Md. Shahadat Hossain Sohag and the deceased was a student of Hon's (3rd year) of Vawal Bodre Alam University college, Gazipur and on 08.01.2010 deceased Sohag was in the house of informant and then at 4.30 pm the friend Bihon of deceased Sohag called over phone to Sohag and told that one Selim disturbs to his wife Akhi regarding that the deceased Sohag was requested to go in the ground of Rajbari. Thereafter, the victim went to the ground of Rajbari with his friend Nahid and the accused persons threatened and quarreled to Bihon, Koysar, Akhi, Sohag, Hanif there and then Sohag and Nahid tried to control the said quarrel. Bihon slapped Selim and then Sohag controlled the situation. At 4.45 pm the accused persons came to place of occurrence with arms attacked and beat Sohag, Bihon, akhi and Nahid by cricket stamp, rod. As a result, the victim Sohag was seriously

injured and he was taken to Sadar Hospital, Gazipur where the duty doctor declared that the victim is dead. Hence, the instant case.

On the basis of F.I.R. police conducted investigation in the matter and during investigation S.I. Modon Mohan visited the place of occurrence, prepared sketch map and index thereof, prepared Inquest Report of the dead body, sent the dead body to the Morgue for postmoretem examination, recorded the statement of witnesses under section 161 of the Cr.P.C and after completion of investigation submitted charge sheet being Charge Sheet No.120 dated 24.02.2011 against 9 (nine) accused-persons under sections 143/ 323/ 324/ 326/ 307/ 302/ 506/ 34 of the Penal Code.

At the commencement of trial on perusal of the materials on record and upon hearing the parties, charge under sections 143/ 323/ 324/ 326/ 307/ 302/ 506/ 34 of the Penal Code

was framed against the accused-persons. The charge was read over and explained to accused-persons, namely, Jahirul Islam @ Jakir Hossain @ Jhontu, Bakka sumon @ Sumon, Towhidul Islam @ Pritom @ Pitu @ Hedu, Arif, Ripon Ahmed Juwel to which they pleaded not guilty and claimed to be tried.

In order to prove the charge as levelled against the accused-persons, the prosecution has examined as many as 14 witnesses. Among them one was tendered.

On the other hand, none was examined on behalf of the defence.

After closure of the prosecution evidence, the accused-persons namely, Jahirul Islam @ Jakir Hossain @ Jhontu, Bakka sumon @ Sumon, Towhidul Islam @ Pritom @ Pitu @ Hedu, Arif, Ripon Ahmed Juwel were examined under section 342 of the Code and their statement were recorded there-under. However, due to abscondence of remaining accused-persons

namely, Selim, Juwel, Asadul Islam, Md. Hanif the Court could not examine them under section 342 of the Code. The accused-persons namely, Jahirul Islam @ Jakir Hossain @ Jhontu, Bakka sumon @ Sumon, Towhidul Islam @ Pritom @ Pitu @ Heddu, Arif, Ripon Ahmed Juwel pleaded their innocence once again and declined to adduce any evidence on their behalf.

The defence case, as it transpires from the trend of cross examination of the prosecution witnesses is that the accused-persons are innocent and have not been involved in this case and the charges leveled against the accused-persons are false.

After trial, on perusal of the evidence and materials on record, the learned trial Judge came to the finding that the prosecution succeeded in proving the charge brought against the condemned-accused, namely, 1. Selim (absconding), 2. Jahirul Islam @

Jakir Hossain @ Jontu, 3. Jewel (absconding), 4. Bakka Sumon @ Sumon, 5. Asadul Islam (absconding), 6. Towhidul Islam @ Pritom @ Pritu @ Itu, 7. Arif, 8. Md. Hanif, 9. Ripon Ahmed Jewel to the hilt and accordingly, convicted them under sections 143 of the Penal Code and sentenced them to suffer rigorous imprisonment for 06 (six) months with a fine of tk. 1000/- (one thousand) and convicted them under section 302 of the Penal code and sentencing them to death by hanging till death with fine of Tk.10,000/- (ten thousand) each, and also convicted under section 506 of the Penal Code and sentencing them to suffer rigorous imprisonment for 02 (two) years with a fine of Tk.2,000/- (two thousand) vide the judgment and order of conviction and sentence dated 25.10.2017.

At the very outset Mr. Bashir Ahmed, the learned Deputy Attorney General (D.A.G) with Mr. Nirmal Kumar Das, the learned Assistant Attorney

General (A.A.G.) and Mrs. Syeda Shobnum Mustary, the learned Assistant Attorney General (A.A.G.) and Mr. Md. Tariqul Islam Hira, the learned Assistant Attorney General (A.A.G.) appearing on behalf of the State submits that the condemned-accused-prisoners killed the victim Sohag brutally and the prosecution has been able to prove the charge as brought against the condemned-accused to the hilt and as such, learned trial Judge rightly passed the impugned judgment and order of conviction and sentence against the condemned-accused-prisoners and as such, it warrants no interference by this Court. The learned DAG and AAG prayed for acceptance of the Death Reference and for dismissal of the Criminal Appeals and Jail Appeal as filed against the impugned judgment and order of conviction and sentence. The learned DAG and AAG also referred the case laws reported in 75 DLR (AD) (2023) 40, (2010) 10 SCC 258, 68 DLR

(AD) (2016) 394, (2011) 2 SCC 199, (2010) 8 SCC 407, (1998) 3 SCC 566, (2001) 7 SCC 70, 2015 BLD (AD) 35, 13 LM (AD) 2022, 66 DLR (AD) (2014) 139, 27 BLC (AD) (2022) 23, 61 DLR (AD) (2009) 151, 40 DLR (AD) (1988), (2001) 7 SCC 691, 28 DLR (AD) (1976) 35, VI ADC (2009) 897 and (2017) 11 SCC 220.

On the other hand, learned Advocate Mrs. Hasna Begum, for the State Defence Lawyer and the learned Advocate Mr. Md. Aminul Haque Helal, for the accused appellant in Criminal Appeal No. 11806 of 2017 and the learned Advocate Mr. Md. Rafiul Islam, for the accused appellant in Criminal Appeal No. 11807 of 2017 and the learned Advocate Mr. Saifuddin Mahmud, for the accused appellant in Criminal Appeal No. 11865 of 2017 and the learned Advocate Mr. Md. Shah Alam, for the accused appellant in Criminal Appeal No. 11866 of 2017 and the learned Advocate Mr. Abdullah Al Baki, for the accused appellant

in Criminal Appeal No. 11972 of 2017 and the learned Advocate Mr. Md. Shaif Uddin (Raton), for the accused-appellant in Criminal Appeal No. 9038 of 2020 submit that the prosecution could not bring home it's case beyond all shadow of doubt against the condemned-accused-prisoners. The trial Court was not justified in awarding death sentence to the accused-prisoners namely, 1.Selim (absconding), 2.Johirul Islam @ Jakir Hossain @ Jontu, 3.Jewel (absconding), 4.Bakka Sumon @ Sumon, 5. Asadul Islam (absconding), 6. Towhidul Islam @ Pritom @ Pritu @ Itu, 7. Arif, 8. Md. Hanif, 9. Ripon Ahmed Jewel under sections 143/302/506/34 of the Penal Code and that the impugned judgment and order of conviction and sentence is liable to be reversed. The learned Advocate prays for rejection of the Death Reference and for acquittal of these condemned-accused-prisoners. The learned Advocates also referred the Case laws

reported in 19 BLC (2014) 195, BCR 1990 AD225, 13 MLR (AD) 2008 247, 73 DLR (AD) (2021) 9, 14 BLT (HCD) 2006 109, 20 BLD (HCD) 2000 427, BCR 1986 AD 225, 11 MLR (HC) 2006, BCR 2004 AD 65, 12 MLR (HC) (2007) 21, 40 DLR (AD) (1988) 147, 2BLC (1997) 249, 14 BLD (1994) 401 and 43 DLR (AD) (1991) 63.

In view of the submission and the counter submission of the learned Advocates representing the parties, this Court is to weigh the relevant evidence and materials on record and to scan the attending evidence of the case to unearth the actual facts of the case to arrive at a proper and correct decision.

In this case, the fact that Sohag, aged about 23 years was killed is an admitted fact.

Now, let us discuss the evidence of prosecution witnesses in order to ascertain how far the prosecution has succeeded in

proving the charge as levelled against accused-persons.

PW.1 Md. Abul Hashem Sufi deposed that he was the informant and he filed the ejahar against the accused Selim, Jhantu, Jewel, Bakka Suman, Asadul, Sobahan, Pritam alias Preetu, Arif, Ripon and Kajal. The occurrence took place on 08.01.2010 at 4.30 pm. The place of occurrence is on the road's side in front of Shaheed Minar in Rajbari field. The victim Md. Shahadat Sohag is his adopted son. He looked after Sohag from childhood. Sohag is his brother-in-law's son. At the time of the occurrence, Sohag was a student of Alam University College at Bhawal Bodre. On the day of the occurrence, he and his son came home after Asr prayer from Munsipara mosque.

His son's friend Bihon Kaiser called his son over mobile phone to go to resolve his family problems. After receiving Bihon's call, his son victim Sohag along with his friend Nahid came to Rajbari field by a rickshaw and saw Bihon Kawsar, Akhi, Sohan, Hanif and Hanif's father Ayub Musalli there. He also saw accused Selim, Zahurul Islam alias Jhantu, Jewel, Bakka Suman, Asadul, Sobahan at the place of occurrence. Those accused-persons abused and threatened Akhi, Bihan which was witnessed by his son Sohag. Then his son Sohag tried to stop the quarrel. But in a moment, Bihan slapped accused Selim, so Selim got angry. Then his son reconciled the two parties and made them embrace. At this time Sohag's two friends Sohan and Hanif, Hanif's

father Ayub Mosalli left. After some time at the command of the accused Selim, other accused namely Pritom alias Pritu, Arif, Kajal and 5/6 other accused with knives, daggers, cricket stumps attacked his son Sohag, Akhi and Bihan and beat them up on different parts of their body. After that, Bihan ran away to save himself and his son fall in the ground with pain after being beaten up. Then the accused Bakka Suman, Arif, Babu, Asadul, Zahirul Islam Jhantu grabbed the hands and legs of his son and Pritom alias Pritu caused a bleeding injury by inflicting dragger blow on the elbow of his son and then he inflicted another dragger blow under the right shoulder which caused bleeding injuries. After that Selim stabbed

his son twice in the chest with the dagger and confirmed his death. At this time they left the place by showing fear. Thereafter, Akhi, Nahid, and Rashedul took Sohag on the road at College Road 30/35 feet east side of the place of occurrence to take a rickshaw. Then again accused Selim inflicted dagger blow on Rashedul and also inflicted dagger blow on Nahid which caused them bleeding injuries.

Thereafter, Nahid and Akhi tried to send the victim Sohag to Sadar Hospital and the doctor in the hospital declared his son dead. The injured Rashedul and Nahid were initially sent to the Dhaka Medical and later Bokkhobedhi Hospital for treatment. He was informed about the occurrence from the Sadar

Hospital, the Police came to the Sadar Hospital, prepared inquest report and sent the dead body to the morgue for autopsy. On 09.01.10, he took the dead body of his son victim Sohag from Sadar Hospital. After the funeral at Jaydevpur Rajbari field, buried in the municipal cemetery. After hearing the details of the occurrence, he filed the case against the accused-persons. He proved the FIR as Exhibit-1 and his signature therein as Exhibit-1/1. He also identified the accused-persons, namely Pritu, Asadul, Zahirul Islam Jhantu, Ripon Ahmed, Jewel, Arif and other accused in the dock. During the investigation the S.I. examined him.

In his cross on behalf of accused-persons Selim and Pritu he stated that his

adopted son Sohag's father's name is Sadikuzzaman Maiz Bhandari. He was alive at the time of the occurrence. Sadikuzzaman Maiz Bhandari's house is next to his house. Sohag's mother is his sister-in-law. He was informed about the occurrence when he was in the mosque. His brother-in-law, that is, the deceased's father, could not be informed at that time. He did not come to the field after getting the news. That day he went to Gazipur Sadar Hospital. The day after the occurrence on 09.01.10 during the funeral, none of the victim's friends were seen in Rajbari field. He filed the case on 10.01.10. His brother-in-law and the victim's friends were not with him on the day of filing the case. He talked to the friends of the victim on the previous

day and after detaining them by the police, they were interrogated and released. The victim died before reaching the hospital. He did not have any conversation with the victim and did not see the occurrence with his own eyes. He heard about the occurrence. He has mentioned in the police station from whom he heard the occurrence. In the case, he mentioned that there was a Shalish regarding Bihan's wife. Bihan was abroad a few days before the occurrence but he was in the country at the time of the occurrence. Bihan's wife worked in a private company. Bihan's wife was having affairs with other people and regarding this there was supposed to be held an arbitration.

He denied the defence-suggestions that Bihan's wife Akhi used to call the victim Sohag over his mobile phone which Bihan came to know from abroad and Bihan called and brought Sohag to Rajbari field to settle that matter. During the investigation, the police did not examine his brother-in-law Sadekuzzaman Maiz Bhandari, sister-in-law Sultana or his wife and they are not witnesses in the case. He denied the defence-suggestions that they knew that Bihan came to know from his friends that the victim Sohag was having an illicit relationship with Bihan's wife so Bihan wanted to kill Sohag through his friends or that after knowing that matter he became confused and therefore took 2 days to file the case or that he filed

the case after lapse of said 48 hours by resolving the matter with Bihan and his wife or that his wife, sister-in-law and the father of deceased knew about the matter so, they were not made witnesses in this case or that the accused Pritom and Selim did not come to the Rajbari field on the date and time of the occurrence and they did not cause any such occurrence or that he filed a false case using his experience and gave false evidence in a false case.

The cross examination was adopted on behalf of accused Arif, Sumon and Jahirul Islam Jhantu.

PW.2 Md. Sumon deposed that the occurrence took place on 8.10.2010 at about 5/4.45 pm. in front of Shaheed Minar of

Rajbari field. He got news at 5.30 pm that some people had a fight with his cousin Sohag. He went to Sadar Hospital and found there Sohag is dead. He had cut injuries on different parts of his body, later he came to know that there was an agitation with Sohag about Bihan's wife Akhi. Then he heard from Akhi that Selim, Pritu, Bakka Suman and others killed Sohag by beating him with hockey-sticks and stabbing him with knives. Later, an autopsy of the deadbody was done.

In his cross on behalf of all the accused persons he stated that he first came to know about that occurrence from Joydebpur Bazar. As he did not see any occurrence with his own eyes, it could not be possible for him to say who killed Sohag. The deceased Sohag's

father Sadekuzzaman Maiz Bhandari is not his own uncle. Sohag's parents are still alive. The informant in this case is his own uncle.

He did not see that his uncle had a very good relationship with the administration and the police. But his uncle was a service holder for that he had a name and fame. He denied the defence-suggestion that he gave false evidence mentioning the names of accsued-persons as taught by the informant.

In cross on behalf of accused Jewel by the state defence he stated that he was not at the place of occurrence. He knew nothing that accused Jewel was at the place of occurrence.

PW.3 Khandaker Nahid Hossain deposed that the occurrence took place on 8.10.2010 at

about 4.45 pm at Rajbari field in Joydebpur. When he was at home his friend Bihan called him over phone and told him that those who used to disturb his wife Akhi were sitting in the chatpati shop at Rajbari field and his friend requested him to go to the shop. He took his friend Shahadat Hossain Sohag and went there by rickshaw. His friends Sohan, Bihan, Hanif were standing in front of Shahid Minar. When he and Sohag went in front of Shaheed Minar, Hanif, Sohag, Bihan went to the chatpati shop at Rajbari field. The accused Selim, Jhantu, Bakka Suman, Asadul were present at the chatpati shop at Rajbari field. Bihan, Sohan, Hanif after going to the spot reconciled the matter and made Selim and Bihan embrace. At this time Bihan's wife Akhi

came in front of Shaheed Minar. Thereafter, Sohan and Hanif left the place by Honda. He along with Bihan, Sohag came in the Shaheed Minar. Later-on, the accused Selim, Jewel, Asadul Bakka Suman, Arif, Pritu, Hanif, Ripon and others came towards them with cricket stamp (stick) and rods. He, Sohag, Bihan and Akhi came and stood in front of Shahid Minar road. The accused-persons prevented them from leaving. The accused Arif tried to hit Bihon with a stamp, but he turned it away. Thereafter, Bihan ran for his life. The accused Arif and Bakka Sumon hit him with stamps. The accused-persons including Selim and Ripon hit his friend Shahadat Hussain Sohag with sticks and stamps and Sohag fall on the ground. The accused Bakka Sumon,

Jhantu, Arif, Hanif caught hold the hands and feet of his friend Shahadat Hossain Sohag and accused Pritu inflicted dragger blow on the left arm of Shahadat Hussain Sohag which caused a bleeding injury. Later on, the accused Pritu handed over the dragger to the accused Selim and the accused Salim inflicted dragger blow on victim's right armpit and chest, causing bleeding injuries. Bihan's wife Akhi kept screaming to save Sohag. Then he along with Akhi and Rashidul Bhai tried to take Sohag from Shaheed Minar to Sadar Hospital, Gazipur to save him. Then the accused Selim came again and inflicted dragger blow on the back of Rashidul Bhai, causing bleeding injuries. Rashidul Bhai fled for his life. Sohag then fell on the ground.

He tried to lift Sohag. Then the accused Selim also inflicted dragger blow on his back, causing bleeding injuries. Bihan's wife took him and Sohag to Sadar Hospital with the help others who were present there. As Sohag's condition was very critical, he was taken to the hospital room in a trolley. There he saw Rashidul Bhai in the hospital. Shahadat Hossain Sohag was declared dead by the doctor on duty. Later on, he and Rashidul Bhai were referred to Dhaka Metropolitan Bokkhobadhi Hospital. He was under treatment in that Hospital from 8.01.10 to 19.01.10. Subsequently, the I.O. examined him. He identified the accused-persons Asadul, Bakka Sumon, Jhantu, Ripon in the dock but the

remaining other accused were not present there.

In his cross he stated that his name is Khandkar Nahid Hossain. He had already given his statement. His house was at the west side of Central Jame Masjid in Joydevpur Munsipara and the deceased Sohag, his parents and the informant of this case all lived in Munsipara area. The woman who is the subject of this case lived in the South Chayabethi with her husband. That woman's husband Bihan called him over phone and he along with Shahadat Hossain Sohag (deceased) took a rickshaw and came to Rajbari field. The Deceased Sohag's parents were alive at the time of occurrence and are still alive. The biological parents of deceased Sohag were neither informant nor

witnesses in this case. The woman's name is Akhi and her husband Bihan was living abroad before the occurrence. Bihan's wife Akhi was working in a private company.

He denied the defence-suggestions that due to the fact that Bihan was abroad, his friends had illicit relationship with Bihan's wife, or after Bihan came from abroad, it could be known from the call list of his wife's mobile phone that he and other friends of Bihan were having conversations over phone, or in that way, disputes arose between Bihan and other friends or that because of their relationship with Bihan's wife, they brought the deceased Sohag to the place of occurrence to punish Bihan, or that the deceased Sohag was injured due to Bihan fought with them, or that later Sohag died due to those injuries, or that the deceased Sohag's biological parents were neither

plaintiffs nor witnesses in this case as the informant filed a false case excluding the real accused.

He did not know whether the informant in this case, Abul Hashem, was the source of the Sadar Police Station and the Police Superintendent's office and brokers.

He denied the defence-suggestion that the informant falsely brought the case by excluding the real accused by taking extra advantage from them.

He did not see whether Abul Hashem was at the door. The occurrence took place at about 4.30 pm and he could not tell after how many days the case was filed. However, after 2/1 days of the occurrence, the case might be filed. He denied the defence suggestions that despite the occurrence took place at Rajbari field at 4.30 pm. in front of the office of district administration, the case was falsely

filed after 2 days of the occurrence after deliberately excluding the real involved persons or that he brought the deceased Sohag from Munsipara in a conspiratorial manner and pushed him to danger or that he conspired and planned with the informant by delaying 2 days, filed the case falsely or that he gave false evidence in a false case.

Cross was adopted by the state defence on behalf of absconding accused Jewel, Hanif and Salim.

PW.4 Md. Rashidul Hasan deposed that on 8.01.10 at about 4.45 pm he was sitting on the south side of Rajbari field. At that time, there was a gathering of people in the chatpati shop on the north side of the Rajbari field and Akhi Akhtar started coming towards Shaheed Minar. After some time, Sohag, Nahid and Bihan started coming towards Shaheed Minar from the shop. When Sohag,

Nahid and Bihan were leaving with Akhi at that time Arif, Bakka Suman, Ripon Ahmed Jewel, Hanif, Jhantu and others came with some stamps and sticks. Then Arif and Bakka Suman hit Bihan with sticks. At that time, Nahid went to prevent them. Then Nahid was hit by Bakka Suman, Arif and Bihan ran away for his life. Sohag prevented Arif and Bakka Suman while they were hitting Nahid. Suddenly Selim took out a knife and inflicted blow to Sohag. When Sohag fell to the ground at that time Selim went to strike Sohag again at that time Akhi tried to save Sohag. Then he along with Nahid and Akhi Aktar were trying to take Sohag to the hospital. After some time, Sohag fall from his hand to the ground. While he was going to pick up Sohag, accused Selim hit him on the back causing bleeding injury and asked why he was trying to save him. He then ran way to save his life. He saw Sohag and Nahid after going to the hospital and then he

saw that Sohag is already dead. Seeing his and Nahid's critical condition, the doctor sent them to Dhaka Bokkhobedhi Hospital and they were treated there. At the time of occurrence, the accused-persons Selim, Bakka Sumon, Arif, Ripon Ahmed Jewel, Jhantu, Hanif and Jewel were present. He identified the accused-persons in the dock. The I.O. examined him at the hospital.

In cross on behalf of Towhidul Islam, Arif, Bakka and all the accused-persons except for the accused-pesons Jewel, Hanif and Salim he stated that at about 9/10 pm. the I.O. examined him. He did not have any conversation with the informant before the filing of the ejahar. He was in the hospital then. He was sitting on the east side of the Shaheed Minar in the Rajbari field. He saw Bihan, Bihan's wife Akhi, Suhan, Hanif in front of the Chotpati shop. He could not tell

whether they were sitting in the chatpati shop or eating chatpati.

He was sitting alone next to Shaheed Minar. He could not say what conversation was made about Bihan's wife Akhi. He could not tell who went in which way. Deceased's name is Sohag. He did not know with whom Sohag used to make love or with whom he used to talk over telephone. He did not know whether Bihan used to stay abroad leaving his young wife in Bangladesh. He did not know that Akhi used to come to the Rajbari field with Sohag and ate fuska. Sohag's parents are alive. He spoke with them during Milad. Sohag is the adopted son of the informant in this case. He could not say by including how many names the informant has filed the statement. Sohag was picked up by him, Akhi and Nahid. Then Bihan ran away. The three of them picked up Sohag and moved towards the palm tree. Rickshaw and Tempo available on the road near Rajbari

field. There was no boundary in the Rajbari field at the time of the occurrence. The three of them did not see who was behind when they were going forward with Sohag. After hitting him in the back, he turned around and saw the accused.

He later came to know that Bihan was living abroad. His wife Akhi lived in the country. Sohag's parents are still alive. He saw Sohag and Nahid in the hospital after the occurrence. He did not talk about this matter with Sohag's father after he returned home from the hospital. He did not know Bihon while abroad, his wife used to have an unusual relation with Bihon's friends and then Bihon came to the country and hearing this, Bihon beat up Sohag. He had known the informant Hashem Sufi for a long time. He did not know whether the informant used to go to S.P. Office, Joydevpur or police station. He denied the defence suggestions that the

informant filed a false case by hiding the real facts or that he gave false evidence by the instruction of informant Hashem.

PW.5 Aklima Akter Akhi deposed that the occurrence took place on 08.01.2010, Friday at 4.45 pm on brick soiling road at Rajbari field. He was working as a sales promoter in Abul Khair Group Company. About $1\frac{1}{2}$ month before the occurrence, a boy from different numbers used to call her and make bad offers by saying various kinds of bad things. The boy gave her call over phone while she was working at that time she told him that she has a husband, she is married, don't disturb her. At one point of time her phone was answered by her team leader Lopa she explained the boy and also said that if he continues making such distrub they would be forced to take legal action. That made the boy angry with her. He threatend her by

saying that he would take revenge. Her husband Bihan Ahmad Qaiser used to stay in Dubai, he returned home on 05.01.2010. On the day of occurrence i.e. 08.01.2010 on Friday between 12-1 pm the boy called her again. She received the phone and said that her husband has come to the country, do not disturb her over the phone. Then the boy said that he wanted to meet with her husband. Then she told her husband that the boy does not believe that she is married. He wanted to meet him. Then her husband told her to tell the boy to come to Rajbari field at 4 pm. After telling her husband she did not know what kind of boy he was. So, they were afraid to go alone. To take someone along, her husband called his friends Sohan, Sohag, Hanif, Nahid and said that the boy who disturbed his wife wanted to meet him and he will inform the boy that they were married and requested to his friends to come. Then

her husband's friends agreed to come. Incidentally she went earlier and sat in a chatpati shop near Shaheed Minar in Rajbari field. Her husband along with his friends stayed at Shaheed Minar. When she was sitting here, after 10/15 minutes 4 boys came and sat on the chair next to her. Then She asked for the name, they introduced themselves as Ripon Ahmed Jewel and Salim. Ripon said this is Salim, who likes you. Then she beckoned to her husband who came to her with his friends at the shop. Thereafter, she said this is Salim who disturbs her over phone, then her husband explained to Selim that we are married, don't disturb her again. The accused Selim then started abusing her husband. Her husband got angry and slapped Selim on the cheek. Then her husband's friends Sohag and Nahid immediately calmed down the two. They settled the matter and made embrace each other. She then moved towards Shaheed Minar.

Incidentally her husband Bihan, his friends Nahid, Sohag, Hanif, Selim also came towards Shaheed Minar. Then they went down from the Shaheed Minar to the brick soiling road. Then immediately accused Selim, Ripon Ahmed Jewel, Hanif, Bakka Sumon, Arif, Preetu, Asadul, Jhontu, Jewel came before them with cricket stamps. Then the accused Arif said who slapped Selim and by saying this, they all started beating them all with the stamp. Sohag and Nahid intervened while beating her husband so, the accused-persons continued to beat them. Her husband was beaten in such a way that he could not bear the blows of the stamp and ran westward across the Rajbari field in fear of his life, when he was chased by the accused Hanif, Asadul, Jhantu. Not being able to catch him, they came back to the brick soiling road in front of the Shaheed Minar. Then she, Sohag, Nahid were present there. The victim Sohag addresses the accused Selim

and said "it has been settled, why did you stop us from going and create a fight". Then they became more angry. At one point of time, the accused Bakka Suman hit Sohag on the head with a cricket stamp, Sohag fell on the ground, then the accused Selim, Arif, Ripon Ahmed Jewel, Bakka Suman grabbed Sohag's hands and feet. The accused Preetu, who was standing, came running and stabbed Sohag's left arm with a pointed dagger. Then the victim Sohag was seriously injured and tried to stand-up, the accused Pritu gave the dagger to the accused Selim and the accused Selim started stabbing Sohag in the chest and back with a pointed dagger which caused severe bleeding injuries and also bleeding from his nose and mouth. Then Nahid and She tried to resist the accused and while she was screaming, at one point of time, the accused Selim hit Nahid on the back with a dagger. Nahid was seriously injured. Then many people

came to save them, the accused tried to prevent and threatened them, Nahid and she kept trying to get up Sohag. Then a stranger boy came forward to help them, the accused Selim also stabbed him on his back with a dagger. Then he left to save his life. Later on, she came to know that the boy's name is Rasedul and he resided in Sahapara. Then she along with Nahid took the injured Sohag to the rickshaw. Then the accused Selim came running again and stabbed Sohag under the armpit of the right hand with a dagger which caused his whole body drenched in blood and he fell from the rickshaw to the ground. Thereafter, Nahid and she took the critically injured Sohag to Gazipur Sadar Hospital with the help of others. She went there and saw the helping boy Rasedul. Then Sohag's condition was very crucial and for this reason he was taken on a trolley to the emergency department. Then she shouted to

save him. The Doctors in the hospital then began to conduct tests and later asked to take him to the next room. She then called her husband over phone and told him that the victim Sohag is in Gazipur Sadar Hospital in a critical condition and told him to inform at Sohag's house. Then the doctors were about to say that Sohag was no longer alive. Sohag died of blunt force trauma and excessive blood loss. Later on, the other injured persons Nahid and Rashedul were referred to Dhaka Medical College after first aid treatment. She identified the accused Selim, Bakka Suman, Preetu, Ripon Ahmed Jewel, Asadul, Jhantu, Arif in the dock and other two accusedd-persons were absent. She had given this statement to the police also.

In cross by the accused Pritu she stated that she is the center point in this case. The alleged occurrence was taken place in 2010. Her house is in Gazipur Sadar. She

heard that the trial of this case started in 2011. She came to court after about 5 years. At the time of giving evindence she stated that her husband is sitting inside the court room. Her husband did not appear as a witness. She got married in 2005. After marriage in 2009 her husband went abroad. She promoted products in various stores as a sales promoter. Her father Barek Mia used to work as a worker in people's house. Her father-in-law is a gold merchant of Joydevpur. Her father-in-law's house was in south Chayabithi. She was at her father's house on the day of the occurrence. She did not tell the police that she was at her father's house for the sake of her husband coming home, because she was not asked. She knew Sohag's parents. They are alive. After that occurrence, she met Sohag's parents. They also lived in Gazipur Sadar. Sohag's father and mother are not informants of the

case. She could not say whether they are made witnesses in this case. She did not say how many times she gave evidence to the police after that occurrence. But she met the police every time when they called. She has been examined at the police station and DB office. On the night of the occurrence, she was first asked by the police station and DB office. She did not recall how many days later she gave evidence again. She told DB Inspector Md. Asadur Rahman about the accused Pritu but she did not know whether it was written.

She denied the defence-suggestions that after her husband going abroad, she used to talk to her husband's friends over mobile phone, eat fuska, chatpati in Rajbari field or that she used multiple SIMs or that she had an illicit relationship with her husband's friend Sohag and that news was passed on to her husband by another friend of her or that her husband came to the country

after getting the news of her illegal relationship or that her husband along with his friends committed this murder in Rajbari field or that even after she told about Sohag's injury to her husband over phone but her husband did not go to the hospital. He went to the hospital. She denied the defence-suggestions that Sohag's parents were not allowed to be informants in this case to hide the real facts or that Abul Hashem became informant in the case because he was a source of police or that the case was filed after two days by concealing the actual occurrence or that she gave false evidence.

The cross examination was adopted by the state defense lawyer on behalf of Ripon Ahmed Jewel and she denied the defence suggestions that she never told the police about Ripon Ahmed Jewel or that she gave false evidence she did not know Ripon or that Ripon was not present at the time of occurrence. It was

Ripon who introduced her with the accused Selim. She denied the defence-suggestion that she gave false evidence by implicating all the accused-persons.

The cross examination was adopted by the state defense lawyer on behalf of accused Bakka Sumon and Arif and in cross she stated that they have been living in Gazipur city as a family for more than 30 years. She got married in 2005 at that time she was studying. In 2007, her husband took her to his family. Her husband went abroad in 2009. She used to stay at her father-in-law's house when her husband went abroad. She knew Sohag, Sohan and Nahid since her marriage.

She did not recall for how many years she used her mobile phone. At the time of giving evidence she did not use that mobile. She gave her mobile number to the investigating officer. Her duty of Sale

Promoter was in Joydevpur Madhya Bazar. They used to go to Victim Sohag's house. She used to go alone and her mother-in-law knew that. Her in-laws did not prohibit her from visiting that house. She also used to go to Sohag's house with her mother-in-law. Her husband also knew about that. She used to go there if there was an occasion and that was not informed Sohag in advance, she would have gone suddenly. While she was working as a Sale Promoter she did not meet Sohag.

On the day of occurrence, she came to the place of occurrence from her father's house. Her husband and she also came to the place of occurrence together. She sat alone in the Chatpati shop. She told Asadul about hitting Sohag with a stamp by Bakka Suman. She told the investigating officer that the accused Arif took her husband running to the west side of Rajbari field. She came to give evidence when the court called her. She

denied the defence-suggestions that most of her statements were not told to the investigating officer or that she had an illicit relationship with the Victim and after receiving that news her husband came home or that her husband brought Sohag by her and after the occurrence she remained at the place of occurrence with the victim instead of accompanying her husband or that the accused Arif, Bakka Suman were not involved in the occurrence or that she gave false evidence to save her husband.

In cross in favor of Zahirul Islam Jhantu she stated that she did not know Jhantu before the occurrence. In the deposition, she told the name of those who were at the place of occurrence. She did not take any legal steps for distrubing her over the phone. She denied the defence-suggestions that Jhantu was not present at the time of occurrence or

that Jhantu did not beat with stamps or that she gave false evidence against Jhantu.

The cross examination was adopted by the state defense lawyer on behalf of Juwel and Hanif and in cross she stated that she did not know the boy who was disturbing before the occurrence. Because of her job, her cell number was in many shops and was in Customar. She denied the defence-suggestion that Sohag used to disturb her.

She did not block the number from which the call was coming. She denied the defence-suggestions that she had an illicit relationship with Sohag or that she came with Sohag to Rajbari field to eat chatpati and suddenly her husband came to know about that or that then her husband and his other friends were standing under the mango tree in the Rajbari field and noticed her movements. In Rajbari field, there were chatpati shops.

She denied the defence-suggestions that she and Sohag were sitting together or that the accused-persons came here to eat Chatpati or that seeing her eating chatpati her husband attacked her and then she went to Shaheed Minar by the instruction of her husband. Many people came ahead but they were obstructed. She did not know whether they are witnesses in this case or not. She denied the defence-suggestions that she did not tell the Daroga about the bad proposal or that she did not tell the Daroga about calling her over phone at 12 o'clock on the day of the occurrence or that the victim died due to the injuries which was caused by her husband and his companions or that she gave false evidence by implicating the accused-persons to save her husband.

The cross examination was adopted by the state defense lawyer on behalf of accused Asadul and accused Selim.

In cross on behalf of the accused Selim she stated that she had acquaintance with Sohag. She denied the defence-suggestions that her relationship with Sohag deepened as her husband went abroad and her husband came home knowing the occurrence or that her husband killed the Victim Sohag in a planned manner or that Selim was not present at the place of occurrence. Selim is the main killer. She denied the defence-suggestion that she gave evidence by hiding the truth.

PW.6 Md. Emdadul Haque deposed that the occurrence took place on 01.08.2010 on Friday at Rajbari field in Jaydebpur. Sohag was killed on the day of the occurrence. He came to Rajbari field that day to eat chatpati. Some people were shouting beside the Shaheed Minar. Upon hearing screaming, he went ahead. He saw one was being run away. He saw a man named Selim stabbed Sohag in the back. When they went forward, they were chased by the

accused-persons. Then he went home. He saw the accused-persons. He identified the the accused Selim and other three persons in the dock. There were five persons in the dock. He gave statement to the police during the investigation.

In cross on behalf of Touhidul Islam Pritu he stated that he knew Sohag from earlier.

The parents of the victim are alive. They lived in Munsipara. He knew Sohag's biological father. He did not know Sohag's biological mother.

The cross examination was adopted by the state defense lawyer on behalf of the accused-persons Ripon, Asadul, Jhantu, Sumon, Arif, Soheli, Hanif and Selim.

PW.7 Bihon Ahmed Kawser deposed that on 08.01.2010, on Friday at about 12-1 pm, a boy

by calling over his wife's mobile number made a bad offer to his wife. Then his wife tried to explain him. At the time of their conversation that boy asked his wife, do you have a husband? His wife answered yes then the boy wanted to meet with him. Then he (pw.7) said to his wife tell the boy to come to Rajbari field at 4 pm. The boy agreed. Then he called his friends over phone and told them the boy who disturbed his wife would come to Rajbari field at 4 pm. He would go to the field and requested his friends to come. Then his friends agreed to come. Then his wife went there and he stood near the Shaheed Minar in the Rajbari field. His friends Sohag, Nahid, Sohan, Hanif came. His Wife went to a shop near Shaheed Minar and sat there. He along with his friends also went to that shop. Then he got to know the accused Selim, Asadul, Ripon Ahmed Jewel and said why did he disturb other's wife. In one

word or two that boy got angry. Then he (PW.7) also got angry and slapped Selim on the cheek. Then his friends Sohag, Nahid, Sohan and Hanif reconciled the matter and made embrace between them. After that, they went to Shaheed Minar to leave for home. Thereafter, Selim along with the accused Arif, Bakka Suman, Asadul, Ripon, Ripon Ahmed Jewel, Hanif, Arif and Pritu came and started beating him by telling who slapped Selim. Then Sohag, Nahid and his wife tried to obstruct them then the accused-persons also started beating them. Then he (PW.7) ran to save himself and went towards the main road. His friend Sohan also came. Then he went to the sweet shop in the market by Honda and found an elder brother there. Then he told him about the occurrence. Meanwhile, his wife called over his phone repeatedly and said "You come to Sadar Hospital". He went to the hospital and saw his friend Sohag covered

with a white cloth. The doctors in the hospital declared him dead. His friend Naheed also got serious injuries. The doctor referred his friend Nahid to Bokkhobedhi hospital for better treatment. The police examined him during the investigation. He identified the accused-persons Preetu, Bakka Sumon, Ripon Ahmed Juel, Jhantu, Arif, Asadul, Selim in the dock.

In his cross in favor of Preetu he stated that he got married to Akalima Akhtar Akhi in 2005. He went abroad in 2009. His wife started a sales job after 4/5 months of their marriage. His wife started that job before he went abroad. After the occurrence, he saw Sohag's dead body in the Sadar Hospital. He did not sign on the inquest report. The police examined him then. He did not recall how many days after the occurrence this case was filed. He went to the police station when the case was filed. The informant in this

case is not Sohag's biological father. His biological parents are alive. He did not inform Sohag's biological parents about that occurrence. While he was abroad he bought a mobile SIM by his friend Sohag and told Sohag to give it to his wife. He gave deposition twice to the police. The time gap between giving two depositions was 1 to $1\frac{1}{2}$ month. During the first deposition, the names of the other accused-persons were not mentioned except Selim but he knew their faces. He did not recall when he gave deposition for the second time.

He denied the defence-suggestions that after 10 months of giving first deposition, he mentioned the names of the other accused-persons in his second deposition. He left in fear of his life. His wife did not go with him for fear of her life. He denied the defence-suggestions that his wife had a

propensity to roam outside for the purpose of working in a private firm or that Sohag had a close relationship with his wife due to his staying abroad or that knowing that matter, he moved to the country quickly or that he brought his friends to beat Sohag or that he got others to kill Sohag and escaped by a motorcycle or that his wife did not go with him because of her weakness for Sohag or that he did not inform Sohag's biological parents because he caused the occurrence or that he filed the case with the help of Hashem at the police station after the lapse of 48 hours of the occurrence or that at the time of the occurrence the accused Pritu was not present at the Rajbari field and that is why he did not mention his name to the Daroga on the first day.

The cross examination was adopted on behalf of the accused Bakka Sumon and Arif.

In cross he stated that he studied up to Class IX. He used to live in Dubai to work in construction site. His marriage with his wife was through love. She used to pass by in front of his shop. He contacted her over mobile. He used to use a mobile all the time. He went abroad on 20.01.2009 and later he moved to the country on 05.01.2010. His wife informed him about that matter on mobile phone then he asked her for legal recourse. The relatives of the accused were also informed about that matter. He came to the country because of company cancellation. He used a mobile in the country but did not recall the number. The number 01670059252 was bought by his friend Sohag. He is the Deceased Sohag. He took that number and by calling over phone to Sohag asked him to give the SIM to his wife. He did not recall by whose name the SIM was registered. That SIM was with Akhi. She didn't use it. She had it.

Sohag used to visit his house sometimes when there was an occasion. The accused Selim wanted to meet him. He asked Selim to come to Rajbari field. On the day of occurrence, he went to visit his in-laws. Then he stayed at his in-laws house. He denied the defence-suggestions that he could have known by any means that Sohag had an illicit relationship with his wife or that his wife used to talk to Sohag by using that SIM or that his parents did not let his wife stay after knowing about that matter. There was less room in his house. He denied the defence-suggestions that he planned to kill Sohag and brought him to the Rajbari field and killed him through unknown people or that he did not give correct information to the investigating officer or that he gave evidence based on the instruction of Sohag's foster father or that he gave false evidence to the court.

The cross-examination was adopted by the state defence on behalf of the accused Asadul, Selim, Jahirul Islam Jhantu and Ripon.

In cross he denied the defence-suggestions that the evidence given about the accused was false because he left the place of occurrence before the occurrence or that the accused Ripon was not present at the place of occurrence.

The cross-examination was adopted by the State defence on behalf of the accused Jewel and Hanif.

In cross he stated that when he ran to save himself, his wife did not scream by saying save him. She did not come with him. The names of accused Jewel and Hanif were not mentioned while he giving the first deposition to the police. He did not know their names then but he knew their faces. He

denied the defence-suggestion that the accused Jewell and Hanif were not present at the place of occurrence.

PW.8 Md. Lokman Hossain deposed that he knew the informant in this case and also knew the victim. He did not know the accused-persons. After getting the news, He saw Sohag's dead body in the emergency department of the Gazipur Sadar Hospital on 10.01.2010. The Daroga prepared the Inquest Report. He saw injuries on the dead body. His signature was taken on the Inquest Report. He identified the Inquest Report as Exhibit-2 and his signature therein as Exhibit-2/2.

In cross in favor of Zahirul Islam Jhantu he stated that he got the news through a friend and went there alone. He went to the

hospital after Maghrib prayer and he did not know what happened before that. The Daroga took signature from them after writing. He denied the defence-suggestions that he did not go to the hospital or that he did not see the dead body or that he signed on the Inquest Report by the instruction of the informant.

The cross-examination was adopted by the State Defence on behalf of the accused Ripon, Asadul, absconding accused Hanif and Juwel.

PW.9 Md. A. Rashid, PPM deposed that he was attached as Officer-in-Charge at Joydevpur on 10.01.2010. Based on the written complaint of the informant of this case, Mr. Md. Abul Hashem Sufi, he recorded the case

and filled-up the FIR form and handed over the charge of investigation to S.I. Md. Anwar Hossain. He proved the ejahar as Exhibit-3 and his signature therein as Exhibit-3/1.

The cross-examination in favor of Preetu, Ripon, Jhontu was declined.

In cross on behalf of accused Asadul Islam, absconding accused Jewel and Hanif by the state defence he stated that the date of occurrence was on 08.01.2010 and the case was filed on 10.01.2010. The informant's house was next to the police station.

PW.10 Sabera Sultana Khanom deposed that when she was attached with Gazipur Magistracy on 11.11.2010 she recorded the confessional statement of the accused Asadul Islam under section 0164 of the Cr.P.C. After taking the confessional statement, she read over it

before the accused and signed it. The accused gave 6 signatures in front of her. She identified the the accused Asadul Haque in the dock. She proved the confessional statement as Exhibit-4 and her signature therein as Exhibit-4/1.

In her cross on behalf of the accused Asadul Islam, Jewel (absconding) and Hanif by the state defence she stated that the accused Asadul was presented before her on 11.11.2010 at about 3 PM by the police. After bringing the accused, she started recording his statement. She denied the defence-suggestions that the accused was not in the closet or that the accused did not make any confessional statement or that the accused came to the field after hearing about the occurrence and saw a man lying there or that Asadul did not give any statement that he killed the victim. What the accused has mentioned in his confessional statement under

section 164 is true. She denied the defence-suggestions that she did not give the sufficient time to the accused or that she did not fill-up the columns of the form properly.

In her cross on behalf of the accsued Md. Tauhidul Islam alias Pritam alias Pritu she stated that Asadul did not mention Pritu's name in his confessional statement.

In her cross on behalf of the accsued Zahidul Islam alias Zakir Hossain alias Jhantu she stated that Jhantu's name was not in the confessional statement.

In her cross on behalf of the accused Ripon she stated that Ripon's name was in the confessional statement. At the time of Identfying Ripon, his father's whereabouts was unknown and he did not recall whether he asked Ripon about it.

In her cross on behalf of the accused-persons Suman and Arif she stated that the names of Suman and Arif were in the confessional statement and there was a statement that Arif has committed the crime. She denied the defence-suggestion that in Asadul's confessional statement it was mentioned that Arif was not involved in the alleged occurrence.

The cross was declined in favor of Suman alias Bakka Suman.

In her cross in favor of the accused Selim she stated that Selim's name was in the confessional statement. She denied the defence-suggestions that the accused Selim did not injured the victim or that the accused Asadul did not give any statement involving himself.

PW.11 Dr. Md. Komor Uddin deposed that while he was working as a medical officer at Sadar Hospital, Gazipur on January 9, 2010, he held the Postmortem Examination on the dead body of Sohag, aged about 23 years. The following injuries were found on the dead body.

1. One stab injury over right. Paravertebral region meduci to right schupula measuring $1" \times \frac{1}{2} \times 2"$.

2. One stab injury over mid of the right lateral chest $1" \times \frac{1}{2} \times 6"$.

3. One stab injury over mid anterior chest $1" \times \frac{1}{2} "$ X' upto sternum with fracture of sternum.

4. One stab injury over left upper part of the chest $\frac{1}{2}$ " X $\frac{1}{3}$ " X $\frac{1}{4}$ ".

5. One stab injury over lateral aspect of left shoulder 1" X $\frac{1}{2}$ " X $\frac{1}{3}$ ".

In their opinion: Death was due to shock and execssive haemorrhage from above mentioned injuries and injury to vital organs which was antemortem and homicidal in nature.

At the time of postmoretm, he was accompanied by Dr. Habij Uddin and Dr. Abul Kalam Azad. He knew them well. He also had their signatures on that day. He proved the Postmortem Examination Report as Exhibit Exhibit-5 and his signature therein as Exhibit-5/1.

In his cross on behalf of the accused Tauhidul Islam Pritam alias Pritu and Liton Ahmed alias Jewel he stated that he received the dead body at about 9 am on 09.01.10 and started the postmortem examination at 11.15 am. Police constable Poresh identified the dead body after receiving the dead body at the morgue, a committee was formed. There were 5 injury marks on the dead body. The injury marks were found on the chest and back of the dead body and no other injuries were found which were sharp cutting injuries. The postmortem was done within 12 hours of victims's death.

She could not say exactly when the victim was died. The Postmortem Examination Report was prepared by him. He denied the defence-

suggestions that he signed on the Postmoretem Examination Report under the influence of the victims's foster father Hashem or that he gave false evidence.

In cross on behalf of the accused-persons Arif, Suman alias Bakka Suman, Jhantu and Asadul he denied the defence suggestions that he did not prepare the Postmortem Examination Report or that he did not follow the procedure in preparing the Postmortem Examination Report.

The cross-examination was adopted on behalf of the accused-persons Selim, Hanif (absconding) and Jewel by the state defence.

In cross he denied the defence-suggestions that the knife was not used as

mentioned in the case but some other weapons were used.

PW.12 Md. Anowar Hossain deposed that he was attached with Joydevpur Police Station as S.I. on 10.01.2010. After receiving the written complaint of the informant Md. Abul Hashem, Jaidebpur Police Station Case No. 28(1)2010 under Section 143/ 323/ 324/ 326/ 307/ 302/ 506/ 34 of the Penal Code was filed and the officer-in-charge handed over the charge of investigation to him. Prior to take the charge of investigation, by the GD No. 471 of Joydevpur police station dated 08.01.2010, he arrived at Joydevpur Sadar Hospital at 7.15 pm and found a dead body in the emergency department of the hospital and the dead body was identified as Sohag aged 23

years, father- Md. Sadir, foster father- Abul Hashem Munshi, Munsipara Police Station, Joydevpur District, Gazipur by Md. Delwar Hossain, the sister-in-law of the deceased Sohag and prepared the Inquest Report of the dead boy of Sohag Mia. He seized a torn full sleeve shirt, a blood stained NOKIA mobile set bearing Model No.1661 with SIM being No.01926221447 as alamot and prepared the Seizure List. He proved the Seizure List as Exhibit-6 and his signature therein as Exhibit-6/1.

During investigation, he visited the place of occurrence, prepared sketch map and index thereof, recorded the statement of the witnesses, examined the informant and arrested the accused-persons and handed over

the case docket to the District Intelligence Agency. He proved the Inquest Report as Exhibit-2 and his signature therein as Exhibit-2/1/1. He proved the Seizure List as Exhibit-6 and his signature therein as Exhibit-6/1. He proved the sketch map and index as Exhibit-7 and 8 respectively and his signatures therein as Exhibit-7/1 and 8/1 respectively.

In cross on behalf of the accused-persons Tauhidul Islam Pritu and Ripon Ahmed Jewel he stated that he was the first I.O of this case. The occurrence took place on 08.01.2010 at 4.45 pm and the case was filed on 10.01.2010 at about 2.35 pm. He did not submit the copy of GD No. 471/10 dated 08.01.2010 before the Court. He was on mobile

duty in Joydevpur Municipal Area that day by GD dated 08.01.10. At about 7.00 pm he was informed by wareless and asked to go to Sadar Hospital then within 10/15 minutes he came to the emergency department of the hospital and he was informed that there was a dead body and he found the dead body on the bed in the emergency department. There were clothes on the body and Sohag's brother-in-law identified the dead body. At about 07.15 p.m. he started preparing Inquest Report and submitted it to O.C. on 08.01.22010. The O.C. did not sign and receive that report.

Sumon, Russell, Sobhan were made witnesses in the Inquest Report. He prepared the Seizure List on 08.01.2010 at about 8.05 pm.

He denied the defence-suggestions that he did not conduct the investigation properly or that Akhi had an illegal relationship with Sohag.

The cross-examination was adopted on behalf of the accsued-persons Asadul, Zahirul Islam Jhantu and Selim.

In cross on behalf of the accused-persons Sumon and Arif he stated that he was the first I.O. of that case and he prepared two seizure lists which had the the same date and time.

He denied the defence-suggestions that Suman, Rashed, Sohan did not see the occurrence or that he prepared the Seizure Sist at the police station or that he did not prepare the Inquest Report properly or that

he was not careful about the investigation in the case and did not review the ejehar properly or that he did not know how many place of occurrence were in the case or that he prepared as the plaintiff has said or that he was influenced by the informant and tried to divert the case to a different way.

The cross-examination was adopted on behalf of the accused-persons Asadul Islam Jhantu.

In cross he stated that he arrested Jhantu on 10.01.10 and prayed for 7 days remand. Remand was not granted while he was attached there. The accused Jhantu did not give any confessional statement in the court while he was I.O. he denied the defence-

suggestion that he did not investigate the case properly.

The cross-examination was adopted on behalf of Hanif (absconding), Jewel and in cross he stated that the informant's house was at Munsipara and about 200/250 yards away from the police station. The informant or his wife informed the police station on 10.01.10 at about 02.35 pm and later on he stated that he did not know whether they informed the police station.

PW.13 Modon Mohon Banik, O.C. DB deposed that he was attached with DB at Gazipur as S.I on 30.06.2010. The investigation of the case was entrusted to him. During the investigation, he revisited the place of occurrence, perused the sketch map which was

exhibited by the former Investigating Officer and tried to arrest the absconding accused-persons. After examining the informant and the witnesses, he recorded the statement of the witnesses under section 161 of the Code of Criminal Procedure. On the orders of the learned court, he interrogated some of the previously arrested accused in jail. He arrested the accused Asadul Islam and handed over him to the court and remanded him for interrogation. While the accsued Asadul was in police remand, he admitted his guilt. Thereafter he presented the accused before the learned Court to give confessional statement and he gave confessional statement under section 164 of the Cr.P.C. before the Court. He along with the accused Ripon Ahmed

Jewel went to Dhirashram to recover the dagger used in the murder and found prima-facie case he submitted the Charge Sheet being No.120 dated 24.02.2011 of Joydebpur P.S. under sections 143/ 323/ 324/ 326/ 307/ 302/ 506/ 34 of the Penal Code before the Court. He identified the accused-persons in the dock. During his investigation, he siezed the blood-stained clothes worn by the victim Nahid. He proved the the Seizure List as Exhibit-9 and his signature therein as Exhibit-9/1.

In cross on behalf of all the accsued-persons he stated that he got the charge of investigation about 6 months after the occurrence i.e. on 30.06.2010. He did not prepare any separate sketch map and index.

He seized the alamat on 04.11.2010 at the DB office which was presented before him by the victim Nahid after 11 months of the occurrence. He denied the defence-suggestion that the victim gave evidence to him to develop the case. The victim himself gave him the evidence. He did not check the alamat separately. Witnesses were present at the time of seizing alamat. He denied the defence suggestion that Nahid presented the alamats imaginatively.

Asadul was arrested on 8.11.2010. After being remanded, he gave confessional statement under section 164 of the Cr.P.C on 11.11.10. He denied the defence-suggestion that the accused did not mentioned in his

confessional statement that he was present at the place of occurrence.

He took the statement of Anik under section 161 of the Cr.P.C. He interrogated the temporary shopkeeper at the place of occurrence and the shopkeepers did not mention that they got injured.

He could not seize any weapons. Two persons were injured in this case. He did not pray for recording their statement under section 164 of the Cr.P.C.

He did not interrogate the biological parents of the victim Sohag as they were not at the place of occurrence. He did not find any previous enmity between the accused with the victim.

He interrogated Bihan's wife Akhi. All the accused-persons did not tease her. He examined Bihon. He did not recall whether Bihon lived outside the country. He denied the defence-suggestions that he did not investigate the case properly or that the original case has been covered up and the case has been filed with a new story or that the accused-persons were not involved with the murder or that he submitted the charge sheet as taught by the informant or that he gave false evidence.

Jhantu's name was not mentioned in the confessional statement under section 164 of the Cr.P.C.

The cross-examination was adopted on behalf of the accsued-persons Hanif (absconding) and Jewell (absconding).

PW.14 Md. Asadur Rahman deposed that he was attached as S.I. in Gazipur District Intelligence Branch on 06.02.2010, the charge of investigation was handed over to him by the Police Superientendent. He received the case docket from the previous investigating officer on 06.02.10. During investigation, he reviewed C.D., revisited the place of occurrence, recorded the statements of 4 witnesses under section 161 of Cr.p.C, collected the call list of some mobile numbers related to the case, collected the Postmortem Examination Report and tried to arrest the accused. At the time of

investiation, he did not prepare new sketch map and index as the sketch map, index prepared by the previous investigation officer were exactly the same. When the charge of investigation was handed over to S.I. Modon Moahan then he handed over the case docket to S.I. Modon Mohon.

In his cross on behalf of all the accused-persons he stated that he investigated the case on 06.02.2010. He himself did not prepare the sketch map and index thereof and did not seize the alamat and he did not arrest any accused-persons.

He examined 4 witnesses separately. He recorded the statement of Aklima and Bihon under section 161 of the Cr.P.C and he did not pray for recording their statement under

section 164 of the Cr.P.C. He did not verify Akalima's claim regarding disbursement. He denied the defence-suggestions that he recorded the statement under section 161 of the Cr.P.C imaginatively or that the witnesses did not give any information about the murder or that he did not investigate the case properly.

The cross-examination was adopted on behalf of the accused-persons Hanif (absconding) and Jewel (absconding) by the state defence.

So, this is the evidence adduced by the prosecution to bring home the charge as brought against the accused-persons. Now, on perusal and on analysis of the evidence on record this Court is to see whether the prosecution could bring home the charge as brought against the accused-persons.

From the evidences of the aforesaid prosecution witnesses, it appears with regard to the killing of the victim Sohag, PW.1 informant Md. Abul Hasem Sufi who is the foster father of the victim supported the prosecution case by stating that on the day of the occurrence, he and his son came home after Asr prayer from Munsipara mosque. His son's friend Bihon Kaiser called his son over mobile phone to go to resolve his family problems. After receiving Bihon's call, his son victim Sohag along with his friend Nahid came to Rajbari field by a rickshaw and saw Bihon Kawsar, Akhi, Sohan, Hanif and Hanif's father Ayub Musalli there. He also saw accused Selim, Zahirul Islam alias Jhantu, Jewel, Bakka Suman, Asadul, Sobahan at the place of occurrence. Those accused-persons abused and threatened Akhi, Bihan which was witnessed by his son Sohag. Then his son Sohag tried to stop the quarrel. But in a

moment, Bihan slapped accused Selim so, Selim got angry. Then his son reconciled the two parties and made them embrace. At this time Sohag's two friends Sohan, Hanif and Hanif's father Ayub Mosalli left. After some time at the command of the accused Selim, other accused namely Pritom alias Pritu, Arif, Kajal and 5/6 other accused with knives, daggers, cricket stumps attacked his son Sohag, Akhi and Bihan and beat them up on different parts of their body. After that, Bihan ran away to save himself and his son fall in the ground with pain after being beaten up. Then the accused Bakka Suman, Arif, Babu, Asadul, Zahirul Islam Jhantu grabbed the hands and legs of his son and Pritom alias Pritu caused a bleeding injury by inflicting dragger blow on the elbow of his son and then he inflicted another dragger blow under the right shoulder which caused bleeding injuries. After that Selim stabbed

his son twice in the chest with the dagger and confirmed his death. At that time they left the place by showing fear. Thereafter, Akhi, Nahid and Rashedul took Sohag on the road at College Road 30/35 feet east side of the place of occurrence to take a rickshaw. Then again accused Selim inflicted dagger blow on Rashedul and also inflicted dagger blow on Nahid which caused them bleeding injuries. Thereafter, Nahid and Akhi tried to send the victim Sohag to Sadar Hospital and the doctor in the hospital declared his son dead. He proved the FIR as Exhibit-1 and his signature therein as Exhibits-1/1.

In this case PW.3, Khandaker Nahid Hossain, PW.4 Md. Rashidul Hasan, PW.5 Aklima Akter Akhi and PW.7 Bihon Ahmed Kaiser who accompanied the victim at the time of occurrence are the most vital, competent and direct eye-witnesses to the alleged occurrence. The said witnesses in a chorus

stated in their evidences that on the date of occurrence i.e. on 8.10.2010 they went to Rajbari field in Joydebpur to meet with accused Selim as he disturbed Bihon's wife Akhi. They were standing in front of Shahid Minar. The accused Selim, Jhantu, Bakka Suman, Asadul were present at the chatpati shop at Rajbari field. Bihan, Sohag, Hanif after going to the spot reconciled the matter and made Selim and Bihan embrace. At this time Bihan's wife Akhi came in front of Shaheed Minar. Thereafter, Sohan and Hanif left the place by Honda. Then Nahid along with Bihan, Sohag came in the Shaheed Minar. Later on, the accused Selim, Jewel, Asadul Bakka Suman, Arif, Pritu, Hanif, Ripon and others came towards them with cricket playing stamp (stick) rods. Nahid, Sohag, Bihan and Akhi came and stood in front of Shahid Minar road then the accused-persons prevented them from leaving. The accused Arif tried to hit

Bihon with a stamp, but he turned it away. Thereafter, Bihan ran for his life. The accused Arif and Bakka Sumon hit him with stamps. The accused-persons including Selim and Ripon hit Shahadat Hussain Sohag with sticks and stamps and Sohag fall on the ground. The accused Bakka Sumon, Jhantu, Arif, Hanif caught hold the hands and legs of the victim Shahadat Hossain Sohag and accused Pritu inflicted dragger blow on the left arm of him which caused a bleeding injury. Later on, the accused Pritu handed over the dragger to the accused Selim and the accused Selim inflicted dragger blow on victim's right armpit and chest, causing bleeding injuries. At that time Akhi kept screaming to save Sohag. Then Nahid along with Akhi and Rashidul tried to take Sohag from Shaheed Minar to Sadar Hospital, Gazipur to save him. Then the accused Selim came again and inflicted dragger blow on the back of

Rashidul causing bleeding injuries. Then Rashidul fled for his life. Nahid and Akhi tried to lift Sohag. The accused Selim also inflicted dragger blow on Nahid's back, causing bleeding injuries. Then Akhi and Nahid took the injured Sohag to the rickshaw at that time the accused Selim came running again and stabbed victim Sohag under the armpit of the right hand with a dagger which caused Sohag's whole body drenched in blood and he fell from the rickshaw to the ground. Thereafter, Akhi took Nahid and Sohag to Sadar Hospital with the help of others who were present there and in the hospital Shahadat Hossain Sohag was declared dead by the doctor on duty.

It is also found from the evidence of PW.6 Emdadul Haque who was present at the time of occurrence is most vital, competent and direct eye-witness to the alleged occurrence and he stated that he saw a man

named Selim stabbed Sohag in the back on the day of occurrence on 01.08.2010 at Rajbari field at Jaydebpur. When he went forward, they were chased by the accused-persons. Then he went home. He saw the accused-persons. He identified the the accused Selim and other three persons in the dock. PW.2 Md. Sumon is the hearsay witness supported the prosecution case by staing that the occurrence took place on 8.10.2010 at about 5/4.45 pm. in front of Shaheed Minar of Rajbari field. He got news at 5.30 pm that some people had a fight with his cousin Sohag. He went to Sadar Hospital and found that Sohag is dead. PW.8 Md. Lokman Hossain supported the FIR case by giving his evidences about the killing of the victim and he also the witness of the Inquest Report. He proved the Inquest Report as Exhibit-2 and his signature therein as Exhibit-2/1.

P.W.12 Md. Anowar Hossain part investigation officer deposed that he visited

the place of occurrence, prepared sketch map and index thereof, recorded the statement of the witnesses, interrogated the informant and arrested the accused-persons and handed over the case docket to the District Intelligence Agency. He proved the Inquest Report as Exhibit-2 and his signature therein as Exhibit-2/1/1. He proved the Seizure List as Exhibit-6 and his signature therein as Exhibit-6/1. He proved the sketch map and index as Exhibit-7 and 8 respectively and his signatures therein as Exhibit-7/1 and 8/1 respectively. PW.13 Modon Mohan Banik part investigation officer deposed that during the investigation, he revisited the place of occurrence, perused the sketck map which was exhibited by the former Investigating Officer and tried to arrest the absconding accused-persons. After interrogating the informant and the witnesses, he recorded the statement of the witnesses under section 161 of the

Code of Criminal Procedure. On the orders of the learned court, he interrogated some of the previously arrested accused in jail. He arrested the accused Asadul Islam and handed over him to the court and remanded him for interrogation. Thereafter he presented the accused Asadul before the learned Court to give confessional statement and he gave confessional statement under section 164 of the Cr.P.C. before the Court and having found prima-facie case he submitted the Charge Sheet being No.120 dated 24.02.2011 under sections 143/ 323/ 324/ 326/ 307/ 302/ 506/ 34 of the Penal Code before the Court. He identified the accused-persons in the dock. During his investigation, he seized the blood-stained clothes worn by the victim Nahid. He proved the the Seizure List as Exhibit-9 and his signature therein as Exhibit-9/1. PW.14 Md. Asadur Rahman, part investigation officer in support of his

investigation stated that on the instruction of the Police Super he took the case docket from the previous investigation officer on 06.02.10 and during investigation he reviewed the case docket, visited the place of occurrence, recorded the statements of 4 witnesses, collected the Postmortem Examination Report and transferred the C.D. to S.I. Modon Mohan Banik as the charge of investigation was handed over to him.

In this case apart from the evidence of the prosecution witnesses, there is the inculpatory confessional statement of the accused Asadul Islam involving the accused-persons in the alleged occurrence.

For better appreciation, the confessional statement of the accused is reproduced below:-

সেলিম, রিপন আমার পূর্ব পরিচিত। ২০১০ সনের জানুয়ারীর ৮ তারিখ শুক্রবার ছিল, বিকাল ৪.০০ টায় আমি যখন দোকানে ছিলাম তখন সেলিম, রিপন আমার দোকানে যায়। তারা আমাকে বলে রাজবাড়ীর মাঠে তারা একটি মেয়ের সাথে দেখা করবে। আমাকেও

সেখানে যেতে বলে। আমি বলি খাওয়া দাওয়া করে পরে যাবো। ওরা ২ জন চলে যায়। ২০ মিনিট পরে আমি বাজারে যেয়ে রিপনকে ফোন দেই এবং রিপন বলে তারা রাজবাড়ীর মাঠে আছে ও আমাকে সেখানে যেতে বলে। আমি ফোন কেটে দেবার পরপরই রিপন আমাকে ফোন দিয়ে জানায় মুন্সিপাড়ার ছেলেরা তাদের আটকিয়েছে এবং আমাকেও সেখানে যেতে বলে। সাথে সাথে আমি রিক্সা নিয়ে রাজবাড়ীর মাঠের উদ্দেশ্যে রওনা হই। আমি বিএনপি অফিস পর্যন্ত যাওয়ার পর দেখি সোহান ও বিহন মটর সাইকেলযোগে মুন্সিপাড়ার দিক হতে আসছে। আমি রাজবাড়ীর মাঠে নেমে দেখি শহিদ মিনারের সামনে অনেক লোকজনের ভিড়। আমি ভিড়ের মধ্যে ঢুকে দেখি একটি লাশ। আমি সঙ্গে সঙ্গে রিপনকে ফোন দেই কিন্তু দেখি রিপনের ফোন বন্ধ। সেলিমকে ফোন দিলে সে আমাকে বলে “আমরা মাইরা রাইখা আসছি, তুই এখনি অফিসে আয়। সঙ্গে সঙ্গে আমি রিক্সা নিয়ে এসপি অফিসের পেছনে বালুর মাঠে যাই। যেয়ে দেখি সেলিমের শরীরে রক্ত মাখা তার হাতে একটি ছুরি। আমি ভয় পেয়ে যাই এবং সেলিম আমাকে বলে তারা মেরে রেখে এসেছে ও হাসপাতালে খবর দিয়েছে। আমি তাদের সাথেই বালুর মাঠে ছিলাম। আধা ঘন্টা পর হানিফের মোবাইলে খবর আসে একটি লোক মারা গিয়েছে। তখন আমরা পালানোর জন্য দৌড়ে কবরস্থানের দিকে যাই। রাস্তা থেকে হানিফ ও আরিফ আলাদা হয়ে যায়। আমরা হাটতে হাটতে ছোট দেওরা পর্যন্ত যাই এবং টেম্পু নিয়ে খিরাশ্রম যাই। বিশ্বরোডে যাওয়ার একটু আগে আমি সেলিমের হাতে থাকা রক্তমাখা ছুরিটি টান দিয়ে ব্রীজের পূর্ব পার্শ্বে ফালাই। তখন সেলিম আমাকে জানায় চৌরাস্তার জুলহাসের কাছে সে মাদক ব্যবসায়ের ২৫০০/ টাকা পাবে এবং আমরা সেই সময় চৌরাস্তার দিকে যাই। জুলহাসের কাছে সেলিম বলে সে একটা মার্ডার করেছে তাই তার এখন টাকা প্রয়োজন কিন্তু জুলহাস টাকা দেয় নাই। এরপর বাসে করে মিরপুর-১ যাই। ৩/৪ দিন মিরপুর

থেকে শেরপুর যাই। রিপনের মামার বাড়ীতে সেলিম সেখান থেকে পালিয়ে এবং আমি ভয়ে দিনাজপুর যাই। ভয়ে আমি ৮/৯ মাস বিভিন্ন জায়গায় লুকিয়ে থাকি, পরে আমি গাজীপুরে এসে বাদীকে সব ঘটনা জানাই। এরপর পুলিশ আমাকে ধরে।

The P.W.10 Sabera Sultana Khanom, Judicial Magistrate who recorded the confessional statement proved the same stating that he recorded it observing all legal formalities and then he appended certificate to the effect that the statement was given voluntarily.

Considering the statement of the accused Asadul Islam under section 164 of the Cr.P.C it is found that the confessional statement given under section 164 of Cr.P.C is inculpatory statement in which the accused tried not to involve him with the occurrence as he did not see the occurrence directly.

But it appears from the deposiiton of PW.3, PW.5 and PW.6 that Asadul Islam along with other accused persons committed the murder of the victim Sohag at the place of

occurrence. So it is clear to us that the accused Asadul Islam by giving this inculpatory statement under section 164 of the Code to save him and also tried to not involve him with the occurrence intentionally. So, the inculpatory confessional statement under section 164 of the Cr.P.C is not relevant for the proof of this case.

Beyond that Dr. Md. Komor Uddin prepared the Post Mortem Report of the victim which he proved as Exhibits-5 and his signature therein as Exhibit-6/1 and he mentioned in the P.M. Report that,

1. One stab injury over right.

Paravertebral region meduci to right schupula measuring 1" X $\frac{1}{2}$ X 2".

2. One stab injury over mid of the right lateral chest $1" \times \frac{1}{2} \times 6"$.

3. One stab injury over mid anterior chest $1" \times \frac{1}{2} "$ upto sternum with fracture of sternum.

4. One stab injury over left upper part of the chest $\frac{1}{2} " \times \frac{1}{3} " \times \frac{1}{4} "$.

5. One stab injury over lateral aspect of left shoulder $1" \times \frac{1}{2} " \times \frac{1}{3} "$.

In their opinion: Death was due to shock and execssive haemorrhage from above mentioned injuries and injury to vital organs which was antemortem and homicidal in nature.

Learned Defence Advocate Mrs. Hasna Begum for the accused persons submits that the F.I.R was lodged after hearing about the

occurrence from PWs who resides in different area from the accused-persons and it is not possible for them to know the names, addresses and other particulars of the accused-persons in details. Moreover, Motive has not been disclosed by the prosecution. But the trial Court without considering the above mentioned loopholes awarded death sentence to the condemned-accused in the case and that the impugned judgment and order of conviction and sentence is liable to be reversed. Learned Defence Advocate lastly argued that the condemned-accused-prisoners are staying in condemned cell about 7 years and they are not involved with other criminal activities and considering their staying in condemned cell about 7 years, previous activities, behavior and character, the death sentence passed by the learned Trial Court against them may be commuted to imprisonment for life.

On the other hand, in reply about the motive of this case the learned DAG argued that motive is not necessary in a criminal case where there are eye-witnesses. PWs.3, 4, 5 and 6 are the eye-witnesses in this case and they corroborated each other. In this regard learned DAG referred the case of The State Vs. Giasuddin and others reported in 18 BLD (AD) (1998) at page 261 wherein it is held that " *What can we say about the view taken by the High Court Division about the motive of the accused party? The prosecution is not bound to prove motive. Yet the High Court Division insisted on the proof of motive. There are as many as 10 eye-witnesses to the murder of 4 persons. Where there is sufficient direct evidence to prove an offence, motive is immaterial and has no vital importance. While trying a case under section 302 of the Penal code or hearing an appeal involving that section, the Court must*

not consider first the motive for the murder, which the High Court Division has erringly done in the present case, because motive is a matter of speculation and it rests in the mind and special knowledge of the accused persons. Motive is not a necessary ingredient of an offence under section 302 of the Penal code. The Court will see if sufficient direct evidence is there or not. If, motive may be a matter for consideration, specially when the case is based on circumstantial evidence."

Learned Advocates Mr. Md. Aminul Haque Helal for the appellant in Criminal Appeal No.11806/2017, learned Advocate Mr.Mohammad Rafiul Islam for the appellant in Criminal Appeal no. 11807/2017, learned Advocate Mr. Saifuddin Mahmud for the appellant in Criminal Appeal No 11865/2017, learned Advocate Mr. Md. Shah Alam in Criminal Appeal No. 11866/2017, learned Advocate Mr. Abdullah Al Baki for the appellant in Criminal Appeal

No. 11972/2017, learned Advocate Mr. Shaif Uddin (Raton), for the appellant in Criminal Appeal No. 9038/2020 argued that all on a sudden the accused Selim stabbed the victim Sohag without prior consent or consultation with the aforesaid accused-persons. It is the contention of the convict-accused-appellants that charge of common intention against them could not be proved by the prosecution.

In this regard, learned DAG also referred the case of Raju Pandurang MahaleVs. State of Maharashtra reported in (2004) 4 Supreme Court cases at page 371. In the said case it is held that "*Section 34 has been enacted on the principle of joint liability in the doing of a criminal act. The section is only a rule of evidence and does not create a substantive offence. The distinctive feature of the section is the element of participation in action. The liability of one person for an offence committed by another in the course of*

criminal act perpetrated by several persons arises under section 34 if such criminal act is done in furtherance of a common intention of the persons who join in committing the crime. Direct proof of common intention is seldom available and, therefore, such intention can only be inferred from the circumstances appearing from the proved facts of the case and the proved circumstances. "

Moreover, it is observed that the very presence of the convicted-accused-persons at the place of occurrence and their participation in the alleged occurrence suggest that in furtherance of their common intention, they perpetrated the alleged occurrence. Further, the common intention of the convicted-accused-persons can be inferred from the circumstances of the case, not by direct evidence. Here, it is found that being equipped with diverse deadly weapons the accused-persons gathered together at the

place of occurrence and attacked the victim of the case without any provocation from the side of the victim which manifest of their pre-plan and common intention to kill the deceased Sohag.

Considering the evidence on record as discussed above and arguments advanced by the learned Advocate for all he convict-accused-persons and cited decision of both the parties, it is found that PWs.3, 4, 5 and 6 are eye-witnesses of the occurrence and PW.7 also saw the 1st part of the occurrence and in a chorus stated about the occurrence in their evidence as discussed earlier and they also corroborated each other. PW.1 corroborated the FIR story which is discussed as earlier. So the evidence of PWs.3, 4, 5 and 6 are unimpeachable.

In view of the discussion made above and so also the observation of the case laws as referred to by the learned Advocate

representing the parties, this Court is led to come in a decision that the prosecution has successfully proved the charge as brought against the accused persons under sections 143/ 302/506/ 34 of the Penal Code for killing of the victim deceased Sohag beyond reasonable doubt.

Considering the evidence on record, facts and circumstances, the irresistible findings of this Court is that at the time and place of occurrence all the accused were present at the place of occurrence and they killed the victim Sohag by inflicting dragger blow on the various parts of his body. So, the victim was killed in a brutal and diabolic manner by the accused-persons.

However, despite the different degrees of participation in the killing of the victim all the accused shall be liable jointly as per the provision of section 34 of the Penal code, 1860. But considering the activities of

the accused-persons and circumstantial evidences as discussed above we are of the view that the ends of justice will be amply met if the death sentence is awarded to the condemned-prisoners namely, (1) Jahirul @ Jhantu (2) Juwel, (3) Bakka Sumon (4) Asadul (5) Pritom (6) Arif (7) Md. Hanif and (8) Ripon Ahmed maintaining their conviction under section 302/34 of the Penal code to a sentence to suffer imprisonment for life and to pay a fine of Tk. 20,000/-, in default, to suffer rigorous imprisonment for another 2 years. Rest the conviction i.e. the conviction of convict accused Selim will be as it is.

In the result, the Death Reference No.144 of 2017 is accepted in part.

The judgment and order of conviction and sentence as passed in Sessions Case No. 509 of 2011 arising out of Joydebpur Police Station Case No.28 dated 10.01.2010

corresponding to G.R. Case No.28 of 2010 is hereby upheld and confirmed in modified form.

We find no merit in Criminal Appeal Nos. 11806 of 2017, 11807 of 2017, 11865 of 2017, 11866 of 2017, 11972 of 2017, 9038 of 2020 and Jail Appeal Nos. 442 of 2017, 443 of 2017, 444 of 2017, 445 of 2017, 446 of 2017, 470 of 2017 and 265 of 2019 which are hereby dismissed.

The death sentence as awarded to the condemned-accused-prisoner, namely, Jahirul Islam @ Jakir Hossain @ Jhantu, Juwel (absconding), Bakka Sumon @ Sumon, Asadul Islam (absconding), Towhidul Islam @ Pritom @ Pritu, Arif, Md. Hanif (absconding), Ripon Ahmed Juwel under sections 302/34 of the Penal Code are commuted to a sentence of imprisonment for life and fine. Said accused-persons are to suffer imprisonment for life and to pay a Tk. 20,000/- in default to suffer rigorous imprisonment for 2 years

more. These accused-persons be shifted from the condemned cell to the normal cell at once.

The death sentence as awarded to the condemned-accused Selim under sections 302/34 of the Penal Code shall remain as it is.

The convict-absconding-accused persons, namely Selim, Juwel and Asadul Islam are directed to surrender before the trial Court to serve out the sentence as awarded to them within 30 days from the date of the receipt of the copy of this judgment by the Trial Court, failing which, the trial Court shall take appropriate legal steps to secure arrest of the said accused-persons.

Let the lower Court's record along with a copy of this judgment be sent down to the concerned Court below at once.

Mohi Uddin Shamim, J:

I agree.